

Pawan Kumar Sharma S/O Shri Ramdayal ... vs Laxmi Devi W/O Pawan Kumar Sharma D/O ... on 12 February, 2020

Author: Inderjeet Singh

Bench: Inderjeet Singh

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Writ Petition No. 16434/2019

Pawan Kumar Sharma S/o Shri Ramdayal Sharma, Aged About
31 Years, R/o Village Tilwad, Tehsil Rajgarh, District Alwar.

----Petitioner

Versus

Laxmi Devi W/o Pawan Kumar Sharma D/o Shri Kajod Mal
Sharma, B/c Brahmin, R/o Village Tilwad, Tehsil Rajgarh, At
Present R/o Village Talab, Tehsil Rajgarh, District Alwar (Raj.)

----Respondent

For Petitioner(s) : Mr. R.K. Sharma.
For Respondent(s) :

HON'BLE MR. JUSTICE INDERJEET SINGH

Order

12/02/2020

1. This writ petition has been filed by the petitioner-husband challenging the order dated 05.08.2019 whereby the court below has allowed the application filed by the respondent-wife under Section 24 of the Hindu Marriage Act, 1955 and awarded monthly maintenance of Rs.5,000/- in favour of the respondent-wife.

2. Counsel for the petitioner-husband submits that the trial court has committed serious illegality in awarding Rs.5,000/- as monthly maintenance in favour of the respondent-wife. Counsel further submits that the petitioner is a labourer and the amount awarded by the court below towards monthly maintenance is on very higher side.

3. Heard counsel for the petitioner and perused the record.

4. Admittedly, the petitioner is having agricultural land and the respondent-wife is also having a school going child, therefore, In (2 of 2) [CW-16434/2019] my considered view, the court below has

not committed illegality in awarding Rs.5,000/- as monthly maintenance in favour of the respondent-wife.

5. In that view of the matter, the writ petition stands dismissed.

(INDERJEET SINGH),J MG/101 Powered by TCPDF (www.tcpdf.org)